



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings :
- against - : FINAL
Police Officer Mariekendy Williams : ORDER
Tax Registry No. 942081 : OF
Housing Borough Manhattan : DISMISSAL
-----X

Police Officer Mariekendy Williams, Tax Registry No. 942081, Shield No. 2103, Social Security No. [REDACTED], having been served with written notice, has been tried on written Charges and Specifications numbered 2014-12548, as set forth on form P.D. 468-121, dated October 21, 2014, and after a review of the entire record, has been found Guilty as Charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Mariekendy Williams from the Police Service of the City of New York.


WILLIAM J. BRATTON
POLICE COMMISSIONER

EFFECTIVE: 0001 Hours, December 22, 2015



POLICE DEPARTMENT

November 24, 2015

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In the Matter of the Charges and Specifications : Case No.
- against - : 2014-12548
Police Officer Mariekendy Williams :
Tax Registry No. 942081 :
Housing Borough Manhattan :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Nancy R. Ryan
Assistant Deputy Commissioner - Trials

APPEARANCE:

For the Department:

Jamie Moran, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent:

Andrew Quinn, Esq.
The Quinn Law Firm
Crosswest Office Center
399 Knollwood Road, Suite 220
White Plains, NY 10603

To:

HONORABLE WILLIAM J. BRATTON
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

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Website: <http://nyc.gov/nypd>

The above-named member of the Department appeared before me on October 16, 2015, charged with the following:

1. Said Sergeant Mariekendy Williams, assigned to the 25th Precinct, on or about October 20, 2014, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Said Sergeant Williams did steal property from the Target shopping center.

P.G. 203-10, Page 1, Paragraph 5 - GENERAL REGULATIONS

2. Said Sergeant Mariekendy Williams, assigned to the 25th Precinct, on or about October 20, 2014, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Said Sergeant Williams did possess stolen property.

P.G. 203-10, Page 1, Paragraph 5 - GENERAL REGULATIONS

The Department was represented by Jamie Moran, Esq., Department Advocate's Office, and Respondent was represented by Andrew Quinn, Esq.

Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Alexis Leen as a witness.

Respondent's Case

Respondent called Cristina Ibarrodo as a witness. Respondent testified on her own behalf.

Evidence

It is undisputed that on October 20, 2014, inside the Target store in Mount Vernon, NY, Respondent placed approximately \$100 of Target merchandise in a Target bag. She proceeded to head towards the exit and had passed all points of sale without paying for the merchandise when she was stopped by Target security officer Alexis Leen. Respondent was arrested and charged with Petit Larceny.

At trial, Alexis Leen testified that she had worked at the Mount Vernon Target for approximately six years and had held positions including Target Protection Specialist and Asset Protection Specialist. (Tr. 13-15). She had received training by Target in how to observe shoppers and make apprehensions of shoplifters. (Tr. 15-16, 47-48). As of October 20, 2014, she had been an Asset Protection Specialist for approximately three months and had made approximately 20-25 stops of shoppers in this role. (Tr. 49).

On October 20, 2014, Leen was working a 1PM to 9:45 PM shift at Target. Shortly after her tour began, she began to do a walk around the store pretending to be a shopper. (Tr. 20). As she was behind a sporting goods aisle, she heard the rustling of plastic bags. She approached the aisle and observed Respondent holding a large Target bag with one toy inside, and three more toys in her hand. (Tr. 21). Leen walked by and "kind of startled" Respondent. (Tr. 21). Leen continued to observe Respondent and saw Respondent proceed to another aisle and take the three toys that were in her hand and

conceal them inside the Target bag. (Tr. 21-22). Leen stated that Respondent then took a "zig-zag" route to the stationary department where Leen observed Respondent put notebooks and a box of envelopes in the bag with the toys. (Tr. 23). Leen next observed Respondent walk towards the exit and past the check-out lanes before she stopped her. (Tr. 25-26). Leen testified that Respondent made statements to the effect that she was sorry and asked to be let go. (Tr. 26). Respondent never told Leen she had made a mistake. (Tr. 67, 71). Leen escorted Respondent to the security office where Leen's manager spoke to Respondent. (Tr. 28-29). Respondent continued to plead to be let go and said she could pay and that she was sorry. (Tr. 29). Respondent never provided any explanation for her actions to Leen. (Tr. 30). The items in Respondent's bag were removed and photographed. (Tr. 31, Dep't. Ex. 1). The total price for the items was \$101.47. (Dep't. Ex. 2).

The Department also presented video evidence showing Respondent at the customer service counter and entering and attempting to exit the store and in the security office. (Dep't. Ex. 3).

Respondent testified that she worked the midnight shift the day before and that October 20, 2014 was a very busy day for her since she had to get her husband's car serviced, do the laundry and meet with her father-in-law. (Tr. 89, 96). She stated that she often goes to the Mount Vernon Target store and was there twice on October 20, 2014. (Tr. 88-89, 96). She was first there at around 9 AM when she purchased some detergent and some clothing. (Tr. 90). She used her debit card, which she further stated had to be swiped several times before it registered. (Tr. 92). Her receipt was for merchandise totaling \$68.72 and \$40.00 cash back. (Resp. Ex. A) She stated that later she noticed

that she had incorrectly been charged for two additional items. (Tr. 92-93). She called Target and was told to return to the store for a refund. (Tr. 93-94).

At approximately 1:20 PM, she returned to the store, parked her car with her two children inside right in front of the store, and went into Target to customer service. (Tr. 96-97). The man in front of her at customer service was throwing out a Target bag so she took it from him to use for her laundry. (Tr. 97). She further testified that while she was at the customer service counter she gave the Target employee her debit card and after the Target employee unsuccessfully swiped it several times, she issued Respondent her refund in the form of \$38.45 cash. (Tr. 98, 101, 108, Resp. Ex. C).

After receiving her refund, Respondent stated that she decided to pick up a few items she needed. (Tr. 100). She went to the toy area and placed the toys in the Target bag she had received from the man at customer service. (Tr. 101). She then went to stationary area and placed the notebooks and envelopes in the same bag. (Tr. 101). While she was in the stationary area, before she picked up the notebooks, she realized the items in her bag amounted to more than the \$38.45 cash refund she received. (Tr. 125). She testified that when she remembered she didn't have enough cash on her to pay for the items, she needed to go outside to tell her daughter to give her another bag that was in the car that she knew had money in it. (Tr. 101). Respondent testified that her intention was to go right outside the store where her daughter would have seen her and to just get the money from her daughter and pay for the items in the bag. (Tr. 102-103). She did not try to call her daughter since the phones weren't working. (Tr. 102). She testified that after she was stopped, the store personnel didn't want to listen to her explanation. (Tr.

105). She stated that she said she needed to get to her daughter to get the cash in order to pay. (Tr. 104).

On cross-examination, Respondent testified that when she called IAB later that day, she did not tell them her explanation of trying to go outside to get money from her backpack. (Tr. 123). She also did not tell her Commanding Officer about her explanation when he spoke to her later that day. (Tr. 124). When asked when the first time was that told to someone, excluding any attorney client communications, about the knapsack that was in her car, she acknowledged that it was at her Department interview on February 9, 2015. (Tr. 124-25).

The defense also called Respondent's daughter to testify. She stated that she was in a car parked outside Target and that her mother did have a backpack in the car. (Tr. 74, 76). She didn't know what was in the backpack. (Tr. 76).

Analysis

In this case it is clear that Respondent was leaving the store with merchandise she had not paid for. The question is whether her actions were intentional or merely a mistake. I find that her actions were intentional.

Respondent's actions look suspicious on their face. On the entrance vestibule video she can be seen pausing right in front of carts before proceeding to the customer service counter. (Dep't. Ex. 3, Entrance vestibule, 1:19 PM). Again as she is leaving the counter, Respondent walks right past carts on her way into the main part of the store. (Dep't. Ex. 3, POS Guest Services, 1:23 PM). She had two opportunities to take a cart to use to conduct her shopping and yet she chose to shop for 10 items including a rather large toy box using just the Target bag she acquired at the customer service area.

Respondent also made no attempts to ask someone to watch the merchandise while she went outside to get the money or to simply leave the items someplace inside the store while she ran out to her car. This was a large bag she was carrying, not a small item that she may have forgotten she was carrying and forgotten to put down. (Tr. 114-15).

The suspicious nature of her actions is not diminished by her explanation of her conduct. Respondent's explanation that she made an innocent mistake is not credible. Respondent wants the court to believe that her actions were not intentional but merely a mistake caused by the fact that she was so rushed that day. If Respondent were truly so rushed it is unlikely she would have gone shopping for items at that second time she was in the store that day, but rather would have hurriedly returned to her car and continued on with her many tasks.

Her explanation also lacks credibility in that as she testified to on cross-examination, she did not give this account of trying to get the money from her backpack in the car to anyone, except possibly her attorney, until her Department interview many months later. Leen testified very credibly that Respondent never gave this explanation to the store personnel at the time she was caught. If her explanation were true, she would have offered it immediately and not for the first time months later.

Also, and perhaps most importantly, the credibility of Respondent's entire testimony is undermined by her false account of how the customer service clerk swiped her debit card several times before issuing her a refund in cash. It is clear from the video that this did not take place. (Dep't Ex. 3, POS Guest Services). In fact, in the video it appears that Respondent is most likely searching for the card in her bag and was not able to find it.

As I reject Respondent's explanation of her actions as unintentional, I find Respondent Guilty of Specifications 1 and 2.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 10, 2006. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

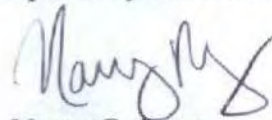
Respondent has been found guilty of stealing \$101.47 worth of merchandise from Target shopping center and for being in possession of stolen property. This is not a case where a small amount of merchandise was mistakenly taken from a store. This is also not a case where the Respondent has had a lengthy career with the Department. In addition, the video evidence in this case indicates that Respondent did not fully testify truthfully in the trial in this case.

There is Department precedent to terminate members of the service who have been found to have committed the crime of larceny. For example in *Case Nos. 84497/08 & 85567/09* (September 22, 2010), an eleven-year police officer with no prior disciplinary record was dismissed from the Department for stealing merchandise from Target and Sports Authority department stores. See also, *Case No. 84586/08* (February 23, 2010) (eleven-year Administrative Staff Analyst dismissed from the Department for stealing merchandise from a Target department store); *Case No. 72276/97* (February 22, 2000) (nine-year police officer with no prior disciplinary record dismissed for stealing a \$269 camera from a store); *Case No. 73017/98* (May 5, 1999) (sixteen-year sergeant with

no prior disciplinary record dismissed from the Department for shoplifting \$71.79 in groceries).

The Department Advocate recommended a penalty of termination. Based on the forgoing I agree with the penalty and recommend that Respondent be DISMISSED from the Department.

Respectfully submitted,



Nancy R. Ryan
Assistant Deputy Commissioner – Trials

APPROVED

DEC 21 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER MARIEKENDY WILLIAMS
TAX REGISTRY NO. 942081
DISCIPLINARY CASE NO. 2014-12548

In her last three annual evaluations, Respondent received an overall rating of 4.0
"Highly Competent." [REDACTED]
[REDACTED]
[REDACTED]

She has no prior formal disciplinary record.

For your consideration.



Nancy R. Ryan
Assistant Deputy Commissioner – Trials